

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2022-004921

BETWEEN:

MS RACHEL THOMPSON

Appellant

- and -

CLEARVIEW CREDIT SERVICES LTD

Respondent

APPELLANT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Appellant seeks compensation under the UK GDPR for distress and damage caused by the Respondent's unlawful processing of her personal data, including inaccurate credit information that caused her to be refused a mortgage.

B. RELEVANT FACTS

2. The Respondent is a credit reference agency that held data about the Appellant.
3. In March 2023, the Appellant discovered that the Respondent had incorrectly recorded a County Court Judgment against her from 2019.
4. The CCJ related to a different individual with a similar name and had been wrongly attributed to the Appellant.
5. As a result of this error, the Appellant was refused a mortgage in April 2023.
6. Despite multiple requests, the Respondent took 6 months to correct the error.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Data Protection Act 2018
 - UK General Data Protection Regulation
 - Consumer Credit Act 1974

D. SUBMISSIONS

8. The Respondent processed inaccurate personal data in breach of Article 5(1)(d) UK GDPR.

9. The Respondent failed to respond to the subject access request within the statutory timeframe.

10. The Appellant suffered distress and financial loss as a direct result of the data breach.

11. The Respondent failed to implement appropriate technical and organisational measures.

E. AUTHORITIES

12. The following authorities are relied upon:

- Lloyd v Google LLC [2021] UKSC 50
- Vidal-Hall v Google Inc [2015] EWCA Civ 311
- Gulati v MGN Ltd [2015] EWHC 1482 (Ch)

F. RELIEF SOUGHT

13. The Appellant respectfully requests that this Court:

- Compensation for non-material damage: £15,000
- Compensation for financial loss: £8,500
- Declaratory relief
- Costs

Michael Thompson KC

David Roberts

7 November 2024

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